

INTERNAL WORKING DOCUMENT

Founders' Agreement — Drafting Checklist & Tech-Contribution Valuation

What to put in the partnership / founders' / shareholders' agreement executed on stamp paper and notarised — equity, salary & drawings format, vesting, exit, IP — plus a dedicated method for valuing one founder's full technology contribution separately from cash.

VERSION 1.0 (for lawyer / CS review)	DATE 10 September 2026
PREPARED FOR Founding team, EdTech B2B2C platform	JURISDICTION India
COMPANION DOC EdTech Platform — MVP Requirements v1.0	STATUS Draft checklist — to be converted into executed agreements by counsel

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1. How to Use This Document & Disclaimer

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NOT LEGAL OR TAX ADVICE

This is a founder-prepared checklist to brief your company secretary (CS) / startup lawyer and to make the drafting conversation efficient. Every clause below must be drafted, adapted and vetted by a qualified professional. Stamp duty, valuation rules and tax treatment vary by state and change over time — confirm current law before executing.

- Use **Section 2** to decide the legal wrapper (Partnership Firm / LLP / Private Limited) — this changes what “equity” and “salary” even mean.
- Use **Section 3** as the clause-by-clause agenda for the drafting session.
- Use **Section 4** to agree the salary / drawings rules *before* money is tight, so it is not negotiated under pressure.
- Use **Section 5** to structure and document the technology-founder's contribution so it is recognised fairly and survives due diligence at the first funding round.
- Use **Sections 6–7** for execution mechanics.
- Fill the **Annexures** in Section 8 and attach them to the signed agreement.

2. Choosing the Right Instrument & the Documents to Execute

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“Partners + equity + ESOP + investors” points to a **Private Limited company**. A Partnership Firm has partners and a profit-sharing ratio, not shares. Decide this first.

Structure	Core document	“Equity” is...	Best when
Partnership Firm	Partnership Deed on stamp paper; register with Registrar of Firms	Profit-sharing ratio + capital / current accounts; “drawings”	Very early, no external investors expected, simple.
LLP	LLP Agreement; file MCA Form 3 within 30 days	Contribution & profit share; limited liability	Services business, no equity fundraising, want liability protection.
Private Limited RECOMMENDED HERE	Bundle below	Shares (equity), cap table, ESOP, investor rounds	You will raise funding, issue ESOPs, and want share-based vesting. This is your case.

2.1 For a Private Limited — execute this bundle (not one paper)

Document	Purpose	Notes
Founders' Agreement	Roles, equity split, vesting, IP, exit, decision-making between founders	Can be pre-incorporation; then ratified by the board.
Shareholders' Agreement (SHA)	Transfer restrictions, reserved matters, tag/drag, information rights, deadlock	Key clauses must ALSO be written into the Articles of Association to bind the company.
Share Subscription Agreement	Who subscribes to how many shares, at what price, by when	At incorporation founders usually subscribe at face value.
Founder Employment / Services Agreement (one per founder)	Salary, role, KRAs, notice, termination for cause, post-exit covenants	This is where the “withdrawal format” in Section 4 lives.
IP Assignment & Confidentiality (PIIA)	Assigns ALL business IP — code, content, docs, domains — incl. pre-incorporation work — to the company	Signed by every founder and every employee/contractor. Prerequisite for Section 5.
Board & shareholder resolutions + updated AoA	Give the above legal effect; file with ROC	PAS-3 / MGT-14 / DIR-12 as applicable.
Registered valuer report (only if issuing shares for non-cash consideration)	Values IP / assets contributed in kind, for share issue & books	By an IBBI-registered valuer. See Section 5.4.

PRECEDENCE

Add a clause stating the order of precedence if documents conflict: typically **AoA → SHA / Investor agreement → Founders' Agreement → Employment Agreements**. Investors will later require their SHA to override the Founders' Agreement.

3. Master Clause Checklist

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Clause-by-clause agenda for the drafting session. **MUST-HAVE** marks clauses that founders most often skip and later regret.

3.1 Parties & entity

- **C-01** Full legal names, residential addresses, PAN, and identification of each founder.
- **C-02** Entity name, type, CIN / registration number, registered office, date of incorporation.
- **C-03** Recitals: background, purpose of the agreement, effective date, definitions.

3.2 Business scope

- **C-04** Description of the business (the ed-tech B2B2C platform per the companion Requirements doc).
- **C-05** Exclusivity — founders devote themselves to this business; no competing activity.
- **C-06** Effect of a future pivot — agreement continues to apply.

3.3 Capital contribution

- **C-07** Cash contributed by each founder, amounts, dates, tranche schedule.
- **C-08** **MUST-HAVE** Non-cash contributions and their agreed rupee value: existing code / repositories, requirements & design documents, domain names, brand, hardware, prior out-of-pocket spend. Itemise each. (Technology contribution → Section 5.)
- **C-09** Consequence of failing to contribute committed capital (dilution / penalty interest / forfeiture of unvested equity).
- **C-10** Founder loans to the company: amount, interest, repayment priority, whether convertible.
- **C-11** Reconciliation of pre-signing expenses already incurred by each founder.

3.4 Equity / ownership split

- **C-12** Exact shareholding: share count, class, face value, percentage per founder; attach the cap table (Annexure E).
- **C-13** Basis of the split — record the rationale (capital, IP, full-time role, risk, network) so it is defensible later.
- **C-14** **MUST-HAVE** ESOP pool: size (e.g. 10–15%), created now or at first round, diluted pro-rata from all founders, who administers it.
- **C-15** Dilution acknowledgement — all founders dilute pro-rata on fundraising and ESOP top-ups.
- **C-16** Treatment of future co-founders / senior hires (equity band, board approval).

3.5 Vesting

- **C-17** **MUST-HAVE** Vesting schedule — standard 4 years, 1-year cliff, then monthly / quarterly. Applies to every founder.
- **C-18** Upfront-vested portion, if any (credit for work already delivered — see Section 5.5).
- **C-19** Acceleration on a liquidity event — single-trigger or (more common) double-trigger.
- **C-20** Unvested shares on exit → company / founders buy back at face value or nominal.
- **C-21** Vesting pauses if a founder drops below full-time.

3.6 Roles & commitment

- **C-22** Title and functional ownership per founder; who is CEO and holds the tie-breaking vote.
- **C-23** **MUST-HAVE** Full-time vs part-time; if part-time now, the date each must go full-time and the consequence of missing it.
- **C-24** Minimum time commitment; no external job / venture / advisory without board consent.
- **C-25** Decisions the CEO may not take alone (link to reserved matters, C-30).
- **C-26** Annual role review.

3.7 Remuneration — see Section 4 for the detailed format

- **C-27** Salary trigger, amounts, payment mechanics, increments, deferral / accrual, behaviour during fundraising.
- **C-28** Expense reimbursement policy — scope, limits, approval, timelines.
- **C-29** Salary is separate from equity, dividends and profit share — state explicitly.

3.8 Governance & decision-making

- **C-30** **MUST-HAVE** Reserved / affirmative matters requiring unanimous or supermajority founder consent: issuing shares; debt above ₹X; annual budget; hiring / firing a founder; changing founder salaries; sale of the company or material assets; IP transfer or exclusive licensing; related-party transactions; change of business; winding up; opening / closing bank accounts; capex above ₹X; commencing litigation.
- **C-31** Board composition, appointment / removal of directors, quorum, meeting cadence, notice, minutes, voting by email.
- **C-32** Ordinary matters — simple majority.
- **C-33** Information rights — every founder receives monthly MIS, bank statements, and the cap table.

3.9 Deadlock

- **C-34** Escalation: founders → mediation → mechanism (CEO casting vote / neutral third director / buy-sell “shotgun” clause). Cooling-off period before any drastic step.

3.10 IP & confidentiality

- **C-35** **MUST-HAVE** All IP relating to the business — source code, content, curriculum, question banks, designs, requirement / architecture docs, domains, trademarks, data — is assigned to the company, **including pre-incorporation work**.
- **C-36** Moral rights waived to the extent permitted; obligation to execute further assignment documents on request.
- **C-37** Confidentiality obligations, survival post-exit, standard carve-outs.
- **C-38** Disclosure of third-party / open-source components and their licences.
- **C-39** Data-protection responsibilities (the platform processes minors' data).

3.11 Restrictive covenants

- **C-40** During tenure: non-compete, no advisory to competitors, full attention to the company.
- **C-41** Post-exit: non-compete 12–24 months in Indian ed-tech (keep reasonable — Indian courts routinely strike down overbroad post-employment non-competes).
- **C-42** Non-solicit of employees, institutes and customers for a defined period (more readily enforceable).

3.12 Founder exit — leaver provisions

- **C-43 MUST-HAVE Good leaver** (death, disability, mutual separation, removal without cause): retains vested shares or sells at fair market value.
- **C-44 MUST-HAVE Bad leaver** (resignation before cliff; termination for cause — fraud, material breach, gross misconduct, conviction, prolonged unapproved absence): company / founders may buy back at the **lower of cost and FMV**.
- **C-45** Valuation method for buyback: agreed formula (revenue / EBITDA multiple) OR independent registered valuer OR last round price with a discount; who bears the cost.
- **C-46** Payment terms — lump sum or instalments over 12–24 months.
- **C-47** Exiting founder resigns directorships, returns all company property and access, and cooperates in transition (credential / code / account handover).
- **C-48** Survival of confidentiality, non-compete and non-solicit after exit.

3.13 Share transfer restrictions (also into the AoA)

- **C-49** Lock-in — no founder transfers shares for N years except as permitted.
- **C-50** Right of First Refusal / First Offer to other founders, then the company.
- **C-51** Tag-along (minority joins a majority sale) and drag-along (majority can require minority to sell in a bona fide exit).
- **C-52** Permitted transfers (e.g. to a family trust) with conditions; no pledge / encumbrance without consent.

3.14 Fundraising

- **C-53** Founders support bona fide fundraising; reserved-matter consent still applies.
- **C-54** Pre-emptive rights for existing shareholders; ESOP top-ups each round.

3.15 Financial controls

- **C-55** Bank operation — two-of-three signatories; per-signatory limits; dual authorisation above ₹X; no cash withdrawal above ₹X.
- **C-56** Accounting standard, bookkeeping tool, statutory + internal audit, financial year.
- **C-57** Budget approval and variance reporting; no personal expenses through the company.
- **C-58** Ownership of statutory compliance (GST, TDS, ROC, PF / ESI).

3.16 Death / disability / insolvency of a founder

- **C-59** Shares pass to the nominee / legal heir with **economic rights only** — no board or management rights unless approved.
- **C-60** Company / founders' option to buy back within N months at FMV.
- **C-61** Key-man insurance — who is covered, company pays premium and is the beneficiary.

3.17 Representations, warranties & boilerplate

- **C-62** Each founder warrants: authority to sign; no conflicting obligation; no prior IP encumbrance; not bound by a former employer's non-compete / IP clause; no pending litigation or criminal case; disclosures are true.
- **C-63** Dispute resolution — governing law India; arbitration (Arbitration & Conciliation Act 1996), single arbitrator, seat & venue = your city, English; courts for interim relief.

- **C-64** Term & survival; amendment only in writing signed by all (or required majority); entire agreement; severability; no waiver; notices (email + registered post); counterparts; assignment restrictions; precedence clause (see 2.1).

4. Founder Salary & Drawings — the Withdrawal Format

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Agree this in writing now. It belongs in each Founder Employment Agreement (Pvt Ltd) or the Partnership Deed (firm).

4.1 When salary starts — the trigger

- Define an objective trigger, e.g. the earliest of: (a) monthly revenue $\geq$ ₹X for 3 consecutive months; (b) external funding of $\geq$ ₹Y raised; (c) company bank balance $>$ N months of runway.
- Until the trigger: zero cash salary, or a token amount, with the balance **accruing** (see 4.4).

4.2 Amount

- State a figure or a band per founder — equal, or differentiated by role / prior earnings / time commitment (record the reason).
- Cap total founder payroll as a percentage of monthly burn (e.g. $\leq$ 30–40%).
- A below-market founder salary now can support a larger equity share or a sweat-equity claim — keep the two conversations linked (Section 5.3).

4.3 Payment mechanics

- Monthly, on a fixed date, through **payroll** with TDS, PF / ESI and professional tax as applicable; payslips issued; Form 16 annually.
- Paid only from the company current account; never as undocumented cash or ad-hoc transfers.
- Partnership firm equivalent: “remuneration to working partners” within Section 40(b) limits, **plus a monthly drawings cap** per partner charged to the partner's current account, with interest on capital and on drawings, trued up at year-end against the profit-sharing ratio.

4.4 Deferral & accrual (cash-short months)

- If cash is insufficient, unpaid salary **accrues as an unsecured payable** to the founder and is settled when the trigger in 4.1 is met.
- Cap total accrual per founder (e.g. 12 months) to avoid a large hidden liability at diligence.
- Board must approve any accrual repayment; investors may require accrued founder salary to be waived or converted at their round.

4.5 Increments & changes

- Reviewed once a year; any raise above a stated percentage or absolute figure needs unanimous founder / board / (later) investor consent — a reserved matter (C-30).
- No consultancy fees, director sitting fees, or vendor payments to a founder or a founder-controlled entity without board approval and disclosure.

4.6 What salary is not

- Salary is compensation for **work**. It does not buy equity, does not create additional equity, and is separate from dividends and profit share. State this expressly so no one later claims “unpaid salary = extra shares.”

A small table: founder | role | salary band | trigger met? | accrual cap | review month.

5. Valuing the Technology Contribution (Separately from Cash)

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One founder is contributing “full tech”: the existing codebase and IP already built, plus ongoing full-time engineering leadership to build the entire platform. This must be recognised distinctly from cash contributions — but structured so it is fair to the others and survives investor due diligence.

5.1 First, split the contribution into two things

What	Nature	How it is recognised
(A) Pre-existing tech & IP already built — source code, architecture, requirement / design docs, domains, prototypes, accounts, out-of-pocket spend	A one-time asset transferred into the company at formation	Value it now (this Section). Settle as equity, or a founder loan / reimbursable, or a mix.
(B) Future full-time work — building, running and maintaining the platform going forward	The job the founder is signing up for	Compensated by the equity split + vesting (Section 3.4–3.5) and, once triggered, salary (Section 4). Do not also invoice the company monthly for this — that is double-counting.

GUARDRAIL

Only **(A)** is valued separately. Ongoing effort is what the larger equity slice and vesting are *for*. Mixing them is the most common way founder cap tables get challenged later.

5.2 Methods to value (A) — use two and cross-check

Method	How	Notes
Replacement / cost-to-build	What an agency would charge to build the equivalent, delivered scope today. Anchor to the companion Requirements doc estimate (₹1.5–2.5 Cr for full build).	Apply a discount for early-stage / unproven / needs-maintenance code: typically 40–70% of the agency quote. Only count what is actually built, not the whole roadmap.
Foregone market compensation	Market CTO + lead-engineer package the founder is giving up, × months already worked unpaid, pre-incorporation.	Good sanity check; also used to size the sweat-equity premium in the split.
Independent registered valuer	An IBBI-registered valuer prepares a valuation report of the intangible assets.	Mandatory if you issue shares for this contribution (non-cash consideration) — see 5.4.
Relative-contribution model	Assign weights to each founder's inputs (cash, IP, full-time role, risk, network) and derive the equity split; tech IP carries a defined weight.	Keeps the outcome as a % split rather than a booked asset — often the cleanest.

5.3 How to settle the agreed value — pick one (or a mix)

Option	Mechanics	Trade-off
1. Reflected in the equity split only	All founders subscribe at face value; the tech founder simply gets a larger share count. The rationale (incl. the valuation of A) is recorded in a schedule.	Simplest, cleanest, no valuation report, no tax question. Nothing booked as an asset. Recommended default.

Option	Mechanics	Trade-off
2. Shares issued for non-cash consideration	Company issues shares to the tech founder against the IP at the valuer's figure; IP recorded as an intangible asset.	Puts a number on the balance sheet, but needs a registered valuer report, board + shareholder approval, PAS-3 filing, and invites s.56 / valuation scrutiny.
3. Founder loan / reimbursable	IP + documented out-of-pocket spend assigned to the company at an agreed value, recorded as an unsecured payable to the founder, repaid from the first funding round or from revenue. Interest optional.	Cash back to the founder later without extra dilution; but it is a liability at diligence and investors may push to waive / convert it.
4. Hybrid	e.g. larger equity slice for the bulk of (A), plus a capped reimbursable for actual cash already spent (infra, domains, freelancers, tools).	Balanced and common. Keep the reimbursable small and fully receipted.

5.4 If you issue shares against the IP (Option 2) — compliance

- Valuation by an **IBBI-registered valuer** (and a merchant banker / CA report for pricing under FEMA if any non-resident is involved).
- Board resolution + special resolution (s.62(1)(c) for a preferential issue) or private-placement route (s.42) as advised.
- Executed **IP Assignment Agreement** first — the company cannot issue shares for an asset it does not own (ties to C-35).
- File **PAS-3** (return of allotment) with the valuation report; record the intangible asset and amortise per accounting policy.
- Tax: shares issued to a founder must be at fair value — a “cheap” issue can be treated as a perquisite / income; an issue above FMV raises s.56(2)(viib) (“angel tax”-type) issues. Get a CA sign-off before allotment.

5.5 Vesting still applies — with a carve-out

- The tech founder's shares vest on the standard schedule (C-17) so the others are protected if the founder leaves early.
- **Carve-out:** the portion attributable to **(A) pre-existing IP already delivered** may be treated as **upfront-vested** (say 10–20% of that founder's stake), because that value is already in the company. Agree the exact upfront-vested number and put it in Annexure C.
- The portion attributable to **(B) future work** stays fully subject to the 4-year / 1-year-cliff schedule.

5.6 Cash the tech founder spends running the build

- If the tech founder also pays and manages an external agency or contractors, that cash is a straightforward **capital contribution or founder loan** — track it in Annexure A / B with invoices, entirely separate from the sweat / IP value of (A).

5.7 Documentation to keep (diligence-proof the claim)

- Inventory of contributed assets: repository names + commit history / first-commit dates, module list, approximate scope mapped to the Requirements doc, design files, domain registrations, third-party accounts, licences.

- Effort log or scope-to-estimate mapping showing what part of the agency estimate the delivered work corresponds to.

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- All invoices / receipts for out-of-pocket spend already incurred.
- The two valuation calculations from 5.2 and, if using Option 2, the registered valuer report.
- Signed IP Assignment Agreement.
- Board resolution + a **schedule to the Founders' Agreement** recording: the agreed value of (A), the method(s) used, the discount applied, and how it is settled (equity / loan / reimbursement / mix), plus the upfront-vested carve-out.

5.8 Worked example (illustrative — replace with your figures)

Agency replacement cost of the scope already delivered	₹1,80,00,000
Discount — early-stage, unproven, maintenance required (55%)	– ₹99,00,000
Imputed value of pre-existing tech IP (A)	₹81,00,000
Documented out-of-pocket spend already incurred (infra, domains, freelancers, tools)	+ ₹6,00,000
Total tech-side contribution recognised	₹87,00,000
Cash contributed by the other founder(s)	₹50,00,000

Ways to reflect it

- **Split-only (Option 1):** contribution ratio $\approx 87 : 50 \rightarrow$ tech founder $\sim 63\%$, cash founder(s) $\sim 37\%$ before any role / vesting adjustment. No asset booked; rationale in the schedule.
- **Hybrid (Option 4):** tech founder $\sim 55\%$, plus ₹6,00,000 reimbursable for actual spend, with the remaining premium expressed through the split; ₹81L not booked.
- **Loan (Option 3):** broadly equal equity split, and ₹87,00,000 recorded as an unsecured founder payable, repaid from the first priced round (subject to investor consent).

RE-TRUE-UP

Whatever you choose, add a clause to revisit / confirm the treatment at the first priced funding round, when there is an external valuation to reference.

6. Stamp Duty, Notarisation & Registration (India)

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- **Stamp paper value is state-specific.** Founders' / shareholders' agreements are commonly executed on ₹100–500 stamp paper; some states levy **ad valorem** duty on the capital / contribution — confirm your state Stamp Act schedule before printing.
- **Partnership Deed:** stamp per state (often a fixed slab, sometimes a % of capital). **Register with the Registrar of Firms** — an unregistered firm cannot sue to enforce the deed. Notarise as well.
- **LLP Agreement:** stamp duty per state schedule on contribution; file **MCA Form 3** within 30 days of incorporation.
- **Execution:** print on stamp paper → every founder signs **every page** → two witnesses → **notarise** (the notary attests execution; this gives evidentiary weight, not registration).
- **Registration > notarisation** for enforceability. For a Pvt Ltd, notarise the SHA / Founders' Agreement **and** write the transfer / vesting / reserved-matter clauses into the **Articles of Association** filed with the ROC — otherwise they may not bind the company or a later shareholder.
- **IP Assignment & Confidentiality:** execute as a separate stamped document, signed by every founder (and every employee / contractor).
- **Originals** stay with the company; each founder gets a certified copy. Keep scanned copies in the data room.
- If any signatory is outside India at signing, follow proper cross-border execution / apostille / adjudication of stamp duty on entry into the state.

7. Execution & Filing Checklist

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1. Decide the structure (Section 2). If Pvt Ltd, incorporate (SPICe+), get CIN, PAN, TAN, bank account.
2. Engage a CS / startup lawyer; share this document and the companion Requirements doc.
3. Agree the equity split, vesting, salary format, and the tech-contribution treatment (Sections 3–5). Fill Annexures A–E.
4. Draft: Founders' Agreement, SHA, Share Subscription Agreement, Founder Employment Agreements, IP Assignment & Confidentiality, updated AoA.
5. If issuing shares for non-cash consideration: obtain the IBBI registered valuer report; CA sign-off on pricing / tax.
6. Confirm state stamp duty; buy stamp paper of the correct value.
7. Board resolution approving the agreements, share allotments, ESOP pool, key-man insurance, bank signatories.
8. Execute all documents: sign every page, two witnesses, notarise.
9. File with ROC: PAS-3 (allotment), MGT-14 / DIR-12 as applicable; update the register of members and the cap table.
0. Register the Partnership Deed with the Registrar of Firms / file LLP Form 3 (if applicable).
1. Put executed copies, valuation report, IP inventory and Annexures in the data room.
2. Diarise: vesting dates, salary-trigger review, annual role & salary review, contribution true-up at first round.

8. Annexures — Schedule Templates

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Fill these and attach them to the signed agreement.

8.1 Annexure A — Capital & contribution schedule

Founder	Cash (₹)	Dates / tranches	Non-cash contribution	Agreed value (₹)	How settled
					equity / loan / reimb.

8.2 Annexure B — Technology-contribution valuation worksheet

Agency replacement cost of delivered scope (from Requirements doc estimate)	₹ _____
Discount applied for early-stage / unproven / maintenance (____%)	– ₹ _____
= Imputed value of pre-existing tech IP (A)	₹ _____
Cross-check — foregone market compensation (____ months × ₹ ____ / month)	₹ _____
Documented out-of-pocket spend already incurred (attach invoices)	+ ₹ _____
Total tech-side contribution recognised	₹ _____
Settlement method (Option 1 / 2 / 3 / 4 — Section 5.3)	_____
Upfront-vested carve-out for delivered IP (% of this founder's stake)	_____ %
Registered valuer report reference (if Option 2)	_____
True-up review event	First priced funding round

Attach: IP inventory (repos + first-commit dates, module list, scope mapping), design files list, domain & account list, invoices, IP Assignment Agreement, valuation calculations.

8.3 Annexure C — Vesting schedule (per founder)

Founder	Total shares	Upfront-vested	Cliff	Vesting term	Frequency	Acceleration
			12 months	48 months	monthly	double-trigger

8.4 Annexure D — Salary & drawings

Founder	Role	Salary band (₹/mo)	Start trigger	Accrual cap	Review month

8.5 Annexure E — Cap table at formation

Shareholder	Shares	Class	%	Consideration
Founder 1		Equity		cash / IP / mix
Founder 2		Equity		cash
ESOP pool (reserved)		—	10–15%	—
Total			100%	

8.6 Annexure F — Reserved matters list

Copy the list at C-30, adjust thresholds (₹X, capex limit, debt limit), and have all founders initial it.